SURPRISE DUBE

v

THE STATE

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
MASVINGO 13 August 2026

Application for bail pending trial

F. Chirairo, for the applicant
B. E. Mathose, for the respondent

DUBE-BANDA J:

[1] This is an application for bail pending trial. After hearing submissions, in an *ex-tempore* judgment, I dismissed the application. In a letter to the Registrar, the applicant has requested written reasons for the dismissal of his application. These are the reasons.

[2] The applicant is charged with the crime of murder as defined in s 47(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. It is alleged that on 25 June 2025, he struck the now deceased twice on the head with a metal tyre lever, causing fatal head injuries. The applicant then disappeared into the darkness, leaving the now deceased lying unconscious on the ground. The police investigation led to the arrest of the applicant, and the charges levelled against him.

The factual matrix

[3] The applicant chose to bring his application for bail by means of a bail statement in terms of Part XV of the High Court Rules, 2021. In addition, he filed a one-sentence affidavit in which he stated that he neither had previous convictions nor pending criminal cases against him. In his bail statement, he stated that he resides at Billi Village 2, Tuli, Chief Sitaudze, Beitbridge. He is unemployed and survives on piece jobs, realizing an average of ZAR 1000 a

week. He is not married and has no children. He neither has connections with the outside world nor does he possess travel documents like a passport.

[4] In addition, the applicant denies that he inflicted the injuries that caused the death of the deceased. He contends that he had no motive to kill the deceased, and he is not the person who was allegedly seen by the juvenile witnesses striking the deceased with a metal tyre lever. He states that at the time he is alleged to have caused the death of the deceased, he was asleep at his homestead. He disputes that he saw the deceased on the fateful day, nor was he ever at the local business center. He avers that he was tortured by the police for the purposes of extracting a confession from him, which confession statement he disowned in court, and it remains unconfirmed. He states that if the alleged murder weapon was taken for forensic examination, it would be apparent that it was not used in the attack on the deceased. Regarding the indications, he avers that he was taken to the scene of crime and did not make any indications. He contends that if the video taken at the scene were produced, it would show that he said he did not know where the deceased was assaulted. He challenges his identification by the juvenile witnesses, on the basis that the evidence of children is generally suspect and has no probative value. And further because the identification was made in the dark. He argues that the prosecution case is weak and cannot be proven at the trial. He disputes that he is a flight risk, and that if admitted to bail he will interfere with State witnesses and police investigations. The applicant contends that the police are on what he calls a witch hunt, because they charged other accused persons of the murder of the same deceased, and these accused were admitted to bail by consent. He contends that he is a good candidate to be admitted to bail pending trial.

[5] The application is opposed on the broad basis that the administration of justice will be prejudiced by the release of the applicant on bail. In support of its opposition, the respondent filed a brief response, and an affidavit deposed to by Detective Sergeant Gede Wellington, the investigating officer. Again, the respondent relied on the oral testimony of the investigating officer. In his affidavit, the investigating officer contends that the applicant is a flight risk because he is charged with a serious offence and the severity of the sentence likely to be imposed on conviction will induce him to evade trial, and that he stays close to the South African and Botswana borders, which will make it easy for him to cross to any of these

countries. He states further that the applicant will interfere with police investigation because statements are yet to be recorded from witnesses, and that releasing the applicant on bail will trivialize the case and society will frown at the justice delivery system.

[6] In his oral evidence, the investigating officer stated that prior to the arrest of the applicant, other people had already been arrested for this crime. He stated that the police have three eyewitnesses, who are sixteen years old, who saw the applicant assaulting the deceased. He stated that in his warned and cautioned statement, the applicant admitted having assaulted the deceased and thus causing his death, and made indications at the scene of crime, which led to the recovery of the murder weapon. The investigating officer testified that, according to the postmortem report, the cause of death was assault. He emphasized that there is no credible evidence linking the other accused persons who were arrested for the same offence.

[7] Under cross-examination, the officer accepted that he is the investigating officer in the matter of the other four accused who are charged with the murder of the deceased. He conceded that these four accused persons were admitted to bail pending trial. The officer further conceded that in the case of the other four, it was alleged that there was a dying declaration; however, further investigations have shown that the allegation of a dying declaration is not supported by evidence. He stated that the juvenile witnesses said they saw the applicant assaulting the deceased and knew nothing about the other four accused arrested for the same case. He said there were lights at the shops, and the witnesses saw the applicant and the deceased pushing each other and the resultant assault. He confirmed that the warned and cautioned statement and indications were not confirmed. He denied that the police assaulted the applicant.

Applicable legal principles and analysis

[8] It is a basic principle of our law that the court should always grant bail where possible and should lean in favour of the liberty of an accused provided that the interests of justice will not be prejudiced. In terms of the requirements of the law, the refusal to grant bail and the detention of an accused in custody shall be in the interests of justice if it is established that there is a likelihood that the accused, if released on bail, will attempt to influence or intimidate witnesses

or attempt to conceal or destroy evidence. In considering this question, the court may take into account the factors identified in s 117 (2)(a)(iii) (i), of the Criminal Procedure and Evidence Act [*Chapter 9:07*], which are whether the accused is familiar with any witness or the evidence; whether any witness has made a statement; whether the investigation is completed; the accused's relationship with any witness and the extent to which the witness may be influenced by the accused; the efficacy of the amount or nature of the bail and enforceability of any bail conditions; the ease with which any evidence can be concealed or destroyed; any other factor which in the opinion of the court should be taken into account.

[9] As stated above, bail should be refused to an accused if, on all the evidence, there is a reasonable possibility that he would tamper with one or more State witnesses if he were released. Depending on the circumstances, the court may rely on the investigating officer's evidence that the accused will interfere with State witnesses if released on bail. In *Ncube* v *The State* 2021 (2) ZLR 225 (H) the court said: "…again, in the exercise of its discretion and depending on the facts and circumstances of the case a court may rely on the opinion of the investigating officer, even though the officer's opinion is not supported by direct evidence." See: *S* v *Hlongwane* 1989 (4) SA 79 (T) at 113 H -114A.

[10] In the Request for Remand Form, it is stated that on 27 July 2026, police detectives were on patrol in the Tuli area and picked up information that there were juveniles in the community who witnessed the murder of the deceased and wanted to report the applicant but were intimidated not to report. The police identified the juveniles, who narrated the events leading to the death of the deceased. They implicated the applicant in the murder. In his evidence, the investigating officer stated that the applicant and the witnesses reside in communal areas; he will be able to find the witnesses and interfere with them. According to the investigating officer, these juveniles are sixteen years old. On the facts and evidence, it is clear that the applicant is familiar with the identity of the witnesses and with the evidence which they may bring against him in court. These are juveniles, and they may easily be susceptible to be influenced and intimidated.

[11] It is not essential for the State to prove actual interference; well-grounded fears will suffice. It is in this context that I accept the opinion of the investigating officer that if released on bail, the applicant will interfere with the witnesses. In assessing the risk of interference, the court is entitled to consider the relationship between the accused and the witnesses. In *casu*, the accused and the witnesses reside in the communal areas, and there is a real risk that the juvenile witnesses will be interfered with and intimidated, and there will be very little, if any, protection for them. The opinion is not based on speculation, but it is based on a conspectus of the facts, evidence and the concrete possibilities of this case.

[12] The applicant contends that the State case is weak and cannot be proven at trial. It is important to take note that this is not a trial. I am not called upon to determine the guilt or innocence of the applicant. That will be the function of the trial court. This is a bail application. It has its own rules on admissibility of evidence and the weight to be attached thereto. I am entitled, though, to take into account the apparent strength or weakness of the case against the applicant as far as that could be determined at this stage. In the evaluation of the relative strength of the State's case in a bail application, a court must caution itself against making a provisional finding of guilt and turning the hearing into a dress rehearsal for the trial. See: *Ncube* v *The State* 2021 (2) ZLR 225 (H) at 233 B-C; *S* v *Viljoen* 2002 (2) SACR 550 SCA) para 25.

[13] In a bail application, depending on the facts of the case, an unconfirmed, warned and cautioned statement is admissible. Evidence of indications is admissible. It is in this context that I accept that the applicant admitted that he caused the death of the deceased and that he made indications at the scene which implicate him in the commission of this crime. I further accept that he led the police to the recovery of the murder weapon. Whether at the trial the statements and the indications will be held inadmissible is inconsequential at this moment. For the purposes of this application, I accept that there is evidence that the applicant was seen assaulting the deceased. In addition, the submission that the evidence of children is generally suspect and has no probative value is no longer a sound and correct statement of the law. See: *Mauka v The State* 2021 (2) ZLR 108 (H). In this instance these are juveniles, aged sixteen years. It cannot be generalized that their evidence will not have probative value. It will be for

the trial court to assess and evaluate their credibility as witnesses and decide whether their evidence has probative value or not. It is in this regard that I take the view that, at least *prima facie,* the State case against the applicant is considerably strong.

[14] Mr *Chirairo,* counsel for the applicant, cross-examined the investigating officer at length about the other four people who were arrested for the murder of the deceased and admitted to bail pending trial. This issue is just a "storm in a teacup," because the investigating officer explained that further investigations have revealed that there is no credible evidence against the four people. In addition, the police have a duty to detect, investigate, and ensure that those suspected of criminal conduct are held accountable. The police cannot refrain from arresting a suspect and bring him to justice merely because earlier investigations led in the wrong direction and the arrest of the wrong people. Therefore, the arrest of the four people does not, in any way, show that the State's case against the applicant is weak.

[15] In considering whether a bail applicant will abscond, this court is entitled to take into account the nature and gravity of the offence or the nature and gravity of the likely penalty therefore, and the strength of the case for the prosecution and the corresponding incentive of the accused to flee. As stated above, I find that the State has a strong *prima facie* case against the applicant. The applicant is facing very serious charges. If convicted, he is likely to be sentenced to a lengthy custodial term and thus will be tempted to abscond and not stand trial. See: *S* v *Jongwe* 2002 (2) ZLR 209 (S). The investigating officer testified that if the applicant is admitted to bail, he is likely to cross the border at an undesignated exit point and escape to South Africa or Botswana. It is a notorious fact that the border between Zimbabwe and South Africa is porous. I accept the opinion of the investigating officer. However, this does not mean that accused persons residing close to the border between Zimbabwe and South Africa are excluded from being admitted to bail. Each case must be determined on its own facts. The temptation for the applicant to abscond is real.

Conclusion

[15] On a conspectus of the facts and the evidence before the court, I am of the view that this is a case where the liberty of the applicant must give way to the interests of justice. There is a real likelihood that if released on bail, the applicant will attempt to influence or intimidate witnesses. In addition, the applicant is a flight risk. I do not think that any bail conditions can mitigate the risk posed, to the administration of justice, by the release of the applicant on bail. The cumulative effect of these facts constitutes a weighty indication that bail should not be granted.

[16] It is for these reasons that I dismissed this application for bail pending trial.

Chirairo and Associates, applicant's legal practitioners
National Prosecuting Authority, respondent's legal practitioners